

ORDINANCE NO. A 7b

TOWN OF DECATUR, MISSISSIPPI

**AN ORDINANCE GRANTING AN ELECTRIC FRANCHISE
TO MISSISSIPPI POWER COMPANY, ITS SUCCESSORS
AND ASSIGNS, IN THE TOWN OF DECATUR,
MISSISSIPPI.**

SECTION 1. In consideration of the benefits that will accrue to the Town of Decatur, and the inhabitants thereof, and of the payment by the Grantee to the town of a sum of money equal to two per centum (2%) per year of the total revenue of the Grantee from the sales of electric energy, excepting there from sales for resale and sales in interchange of energy with others, within the corporate limits of Town, or the sum of two hundred dollars (\$200) per year, whichever is the greater, payable quarterly on or before thirty days following the close of each calendar quarter during such period as the Grantee operates in said Town, but not to exceed twenty-five (25) years from the effective date of this ordinance, Mississippi Power Company, its successors and assigns, herein referred to as the Grantee, is hereby given and vested with the right, authority, easement, privilege and franchise to construct, erect, suspend, install, renew, repair, maintain, operate and conduct in the Town a plant or plants and system for the manufacture, distribution and transmission of electric energy for all purposes whatsoever.

SECTION 2. The Grantee is hereby further given and vested with the right, authority, easement, privilege and franchise to construct, erect, suspend, install, renew, repair, maintain, operate and conduct in the Town a system of poles, towers, conduits, cables, conductors, transforming stations, fittings and all appliances or appurtenances necessary or desirable to the transmission, distribution, or sale of electric energy for all purposes whatsoever in, over, under, along, upon and across all streets, avenues, alleys, ways, bridges and public places in the Town as they now exist or may hereafter be laid out or extended, together with the further right, privilege and franchise to construct, erect, suspend, install, renew, repair, maintain and operate such poles, towers, conduits, cables, wires, conductors, transforming stations, fittings and all appliances and appurtenances necessary or desirable to the transmission within, into, through, over and beyond the Town and furnishing, supplying and distributing to the Town and to the inhabitants and corporations both within and beyond the limits, thereof, electric energy for lighting, heating, power and all other purposes for which electric energy may be used now or hereafter, and for the purpose of extending its lines and furnishing electric energy beyond the limits of the Town.

SECTION 3. The poles, towers, conduits, cables, conductors, transforming stations, fittings, appliances and appurtenances shall be so constructed as not unreasonably to interfere with the proper use of the streets, avenues, alleys, ways, bridges and public places in the Town and shall be maintained all in a reasonably good condition and repair.

SECTION 4. Whenever the Grantee shall cause any opening or alteration to be made in any of the streets, avenues, alleys, ways, bridges or public places of the Town for the purpose of installing, maintaining, operating, or repairing any poles, towers, conduits, cables and other appliances, the work shall be completed within a reasonable time and the Grantee shall upon the completion of such work restore such portion of the streets, avenues, alleys, ways, bridges or other public places to as good condition as it was before the opening or alteration was so made.

SECTION 5. The Grantee shall hold the Town harmless from any and all liability or damages resulting from the negligence of the Grantee in the construction, maintenance or operation of its poles, towers, conduits, wires, cables and other appliances.

SECTION 6. The Grantee may, from time to time, declare, make and enforce reasonable rules and regulations as conditions for the sale and distribution by it of electric energy to any person, firm or corporation.

SECTION 7. In the event the supply of electric energy should be interrupted or fail by reason of accident or otherwise beyond the control of the Grantee shall restore the service within a reasonable time and such interruption shall not constitute a breach of this franchise, nor shall the Grantee be liable for damages by reason of such interruption or failure.

SECTION 8. Wherever in this ordinance either the Town or the Grantee is named or referred to, it shall be deemed to include the respective successor, successors or assigns of either, and all rights, privileges or obligations herein conferred shall bind and insure to the benefit of such successor, successors or assigns of the Town or the Grantee.

SECTION 9. This franchise is in lieu of a franchise granted by the Town of Decatur, to Mississippi Power Company, its successor and assigns, by ordinance dated the 27th day of May, 1930, recorded in Minute Book 2, pages 342-344, and Ordinance book 2, pages 342, of the Town, now held and owned by the Grantee, which upon the effective date of this ordinance, by mutual consent of the parties thereto, shall be no longer in force and effect. This franchise is in addition to and supplemental to any and all such rights as the Grantee may have by virtue of the provisions of any section of the Mississippi Code of 1942 and its acceptance and exercise by the Grantee shall never be construed as a waiver nor abandonment of nor as a limitation upon the rights now vested in or being exercised by the Grantee under any statute of the State of Mississippi.

SECTION 10. The rights hereby granted shall become effective upon the passage of this ordinance and continue for a period of twenty-five (25) years thereafter.

SECTION 11. If any clause, provision or section of this ordinance is illegal, or is not embraced within the title, the remaining provisions hereof shall not be thereby affected but shall have full force and operation.

SECTION 12. The Grantee shall pay the Town the cost of publishing this ordinance, such publication to be made according to law.

SECTION 13. The public interest demanding and requiring, in the judgement of the Mayor and Board of Aldermen of the Town of Decatur that this ordinance take effect at once, it is further ordered that this ordinance take effect and be in force from and after its passage and approval according to law.

Whereupon, it was declared adopted. Approved this the 7th day of January, A.D. 1947.